

STATE OF NEW YORK

5291--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 12, 2025

Introduced by M. of A. LASHER -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to requiring certain housing production information to be reported to the department of state

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The executive law is amended by adding a new section 120 to
2 read as follows:

3 § 120. Housing production reporting. 1. For the purposes of this
4 section, the following terms shall have the following meanings:

5 (a) "Local board" means any city, town, or village board, commission,
6 officer or other agency or office having supervision of the construction
7 of buildings or the power of enforcing municipal building laws.

8 (b) "Housing site" means the site of planned construction, conversion,
9 alteration, demolition, or consolidation of one or more residential
10 buildings.

11 (c) "Dwelling unit" means a dwelling within a residential building
12 which is either rented, leased, let or hired out, to be occupied, or is
13 occupied as the residence or home of one or more individuals that is
14 independent of other dwellings within such residential building.

15 2. The department shall require each local board to submit to the
16 department annually, in the manner and format to be directed by the
17 department, the following information regarding new construction,
18 conversion, alteration, demolition, or consolidation of a housing site
19 within the jurisdiction of such local board that is required to be
20 reported to such local board; provided, however, that this requirement
21 shall not apply to any local board in a town with a population of less
22 than five thousand people:

23 (a) the address of such housing site;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) the block and/or lot number of such housing site;
2 (c) the total number of dwelling units in such housing site;
3 (d) the building type, any relevant dates of approval, permits, and
4 completions associated with such housing site;
5 (e) any associated governmental subsidies or program funds being allo-
6 cated to such housing site that such local board is aware of; and
7 (f) the specific details of such construction, conversion, alteration,
8 demolition, or consolidation of such housing site.

9 3. Beginning on the thirty-first of January next succeeding the effec-
10 tive date of this section, and annually thereafter, the department shall
11 require each local board to submit to the department, in a manner and
12 format to be determined by the department, a digital file containing a
13 zoning map of such local board's jurisdiction that contains the follow-
14 ing information for the prior year; provided, however, that this
15 requirement shall not apply to any local board in a town with a popu-
16 lation of less than five thousand people:

17 (a) The geographic extents of areas where residential housing, commer-
18 cial, industrial, or other developments are permitted;

19 (b) In areas zoned for residential housing areas, where residential
20 buildings containing two, three, and four or more dwelling units are
21 allowed per lot;

22 (c) Any minimum lot size requirements for residential housing;

23 (d) Any minimum size requirements for individual dwelling units;

24 (e) Any parking requirements for residential buildings;

25 (f) Any setback or lot coverage requirements;

26 (g) Designation of whether each zoning approval granted by such local
27 board was as-of-right or discretionary; and

28 (h) The geographic bounds of any areas which have been amended since
29 such local board's previous submission pursuant to this subdivision.

30 4. When determining the manner and format for submissions in accord-
31 ance with subdivisions two and three of this section, the department
32 shall consult with the division of housing and community renewal and
33 provide an option for localities to make submissions in substantially
34 the same manner and format as the division requires for submission of
35 similar information for other related programs.

36 5. The division of housing and community renewal shall submit to the
37 department annually, in a manner and format to be determined by the
38 department, a report of all housing subsidies administered by such divi-
39 sion in the prior year.

40 6. The department shall make the information submitted pursuant to
41 subdivisions two, three, four, and five of this section publicly avail-
42 able on its website, updated annually to reflect the most recent
43 submissions.

44 7. Failure of any local board to comply with the reporting require-
45 ments of this section shall result in a fifty percent reduction of any
46 funds to be distributed to any municipality within such local board's
47 jurisdiction pursuant to the community development block grant program
48 authorized under title one of the federal Housing and Community Develop-
49 ment Act of 1974, as amended.

50 § 2. This act shall take effect on the first of January next succeed-
51 ing the date upon which it shall have become a law. Effective immediate-
52 ly, the addition, amendment and/or repeal of any rule or regulation
53 necessary for the implementation of this act on its effective date are
54 authorized to be made and completed on or before such effective date.